



The binding procedural
framework for all
arbitrations conducted
under the rules of the
Arab Authority for
Engineering Arbitration

ENGINEERING ARBITRATION PROCEDURES AND RULES

Arab Authority for Engineering Arbitration
Federation of Arab Engineers



PART ONE — PROCEDURES AND RULES

Preamble

Pursuant to the objectives of the Arab Authority for Engineering Arbitration to regulate the settlement of engineering and construction disputes, to elevate arbitration as an efficient and expeditious means of achieving justice, and to develop procedural rules consistent with international standards while remaining attuned to the particularities of Arab engineering practice;

In fulfilment of the principle of party autonomy in choosing the appropriate means of settling their disputes, and in order to guarantee neutrality, independence and equality in arbitral proceedings, and out of a concern for the expeditious resolution of construction disputes, which are by nature technically and financially complex;

In harmony with the UNCITRAL Arbitration Rules as revised in 2013, and with the best international practices of major arbitral institutions such as the London Court of International Arbitration (LCIA), while having regard to the particular needs of disputes arising from engineering and construction contracts, in particular FIDIC contracts;

The Arab Authority for Engineering Arbitration hereby issues these Rules, which constitute the mandatory procedural framework for all arbitrations conducted under them, and which are hereinafter referred to as “the Rules”.

Chapter I — General Provisions and Scope of Application

Article (1): Definitions and Terminology

For the purposes of applying these Rules, the following terms shall have the meanings set out opposite each of them:

- “The Authority”: the Arab Authority for Engineering Arbitration affiliated with the Federation of Arab Engineers.
- “Executive Committee”: the administrative body of the Authority responsible for the administrative supervision of arbitration proceedings.
- “Arbitral Tribunal”: the sole arbitrator or the three arbitrators appointed to decide the dispute.
- “Arbitrator”: any natural person appointed to decide a dispute under these Rules.
- “Parties”: the Claimant and the Respondent, and any person joining the arbitral proceedings in an official capacity.
- “Claimant”: the party initiating the request for arbitration.
- “Respondent”: the party against whom the request for arbitration is directed.
- “Arbitration Agreement”: the written agreement between the parties to refer the dispute to arbitration, whether contained in an arbitration clause in a contract or in a separate submission agreement.
- “Arbitration Clause”: the agreement contained within an existing contract providing for future disputes to be referred to arbitration.
- “Submission Agreement”: the agreement concluded after a dispute has arisen to refer it to arbitration.
- “Award”: the dispositive decision rendered by the arbitral tribunal, including partial, final and additional awards.



- “Day”: a full calendar day, unless otherwise specified.
- “Engineering Dispute”: any dispute arising out of, or connected with, an engineering or construction contract, an engineering services contract, or its performance, interpretation or effects.
- “Engineering Contract”: any contract relating to design, construction, erection, supply, engineering consultancy, or project management works.

Article (2): Scope of Application of the Rules

2-1: These Rules apply to every arbitration which the parties have agreed in writing to conduct under the rules of the Arab Authority for Engineering Arbitration, whether the arbitration is domestic between parties from a single State or international between parties from different States.

2-2: The Authority has jurisdiction to hear all disputes arising from, or connected with, the following:

- Contracting, building and construction contracts of every kind, including FIDIC contracts in their various editions.
- Engineering design, supervision and project management contracts.
- Contracts for the supply of engineering equipment, installations and plant.
- Consultancy services and engineering studies contracts.
- BOT, PPP and concession contracts of an engineering nature.
- Engineering subcontracts.
- Any other contract which the parties consider to be of an engineering nature.

2-3: The arbitration agreement applies to all disputes arising out of, or by reason of, the original contract, including disputes relating to its interpretation, validity, effectiveness, termination or effects.

2-4: The parties shall not be obliged to resort to the Authority to settle a dispute except pursuant to an express written agreement, whether concluded prior to the dispute arising (arbitration clause) or after it has arisen (submission agreement).

Article (3): Fundamental Principles of Arbitration

All arbitral proceedings before the Authority are conducted on the basis of the following fundamental principles, from which neither the parties nor the arbitral tribunal may depart:

- Principle of Equality: the parties shall be treated with complete equality, and each shall be given a full opportunity to present its claims, defences and evidence.
- Principle of Due Process (Adversarial Proceedings): the arbitral tribunal may not rely on facts or arguments which a party has not had the opportunity to review and respond to.
- Principle of Party Autonomy: the parties are free to agree on the procedures, the applicable law, the language and the seat, within the limits of these Rules.
- Principle of Confidentiality: arbitral proceedings, documents and awards are confidential unless the parties agree otherwise or the law requires otherwise.
- Principle of Independence and Impartiality: arbitrators must be independent and impartial towards all parties.
- Principle of Expedition and Efficiency: the proceedings shall be managed so as to ensure the swift and cost-effective resolution of the dispute.



Chapter II — Commencement of Arbitral Proceedings

Article (4): Request for Arbitration

4-1: Arbitral proceedings commence upon the Claimant submitting a request for arbitration to the Chairman of the Authority's Executive Committee, in writing or electronically to the Authority's official email address.

4-2: The request for arbitration shall contain the following particulars and information:

1. An express request to refer the dispute to arbitration before the Arab Authority for Engineering Arbitration.
2. The Claimant's full name, address and contact particulars (telephone, fax, email) and legal capacity.
3. The full name(s) of the Respondent(s), their addresses and contact particulars.
4. The name of the Claimant's legal representative or counsel and their contact particulars.
5. A brief description of the subject matter of the dispute, its facts and surrounding circumstances.
6. The legal and contractual basis for the claims.
7. A statement of the specific relief sought, together with the aggregate amount in dispute.
8. A statement of the nature of the arbitration agreement (arbitration clause or submission agreement).
9. A proposal as to the number of arbitrators, the language and the seat of the arbitration, if the parties have not already agreed thereon.
10. The name of the arbitrator nominated by the Claimant (in the case of a three-member tribunal).

4-3: The request for arbitration shall be accompanied by the following documents:

- A certified copy of the original contract and its annexes.
- A certified copy of the arbitration agreement, if it is a separate instrument.
- The power of attorney or instrument authorising the Claimant's representative, if any.
- Payment of the registration fee in accordance with the Authority's applicable schedule of fees.

4-4: The arbitral proceedings shall be deemed to have formally commenced on the date the Respondent receives the request for arbitration, and the Authority shall be deemed to have received the request on the date it is received by the Executive Committee in a form satisfying the formal requirements.

4-5: The Executive Committee shall send a copy of the request for arbitration to the Respondent as soon as it satisfies the formal requirements, and shall specify the time limit for the response provided for in Article (5).

Article (5): Answer to the Request for Arbitration

5-1: The Respondent shall submit its written answer to the request for arbitration to the Executive Committee within thirty (30) days of the date it receives the request.

5-2: The answer to the request for arbitration shall include:

1. The Respondent's name, address and full particulars.
2. The name of the legal representative or counsel and contact particulars.
3. Its comments on the question of the arbitral tribunal's jurisdiction, if any.
4. Its position on the facts of the dispute and the Claimant's claims.
5. Its substantive and procedural defences.



6. Any counterclaims, together with their value.
7. Its comments on the constitution of the arbitral tribunal and the number of arbitrators.
8. The name of the arbitrator nominated by the Respondent (in the case of a three-member tribunal).
9. Its comments on the seat, the language, and the applicable law.

5-3: Failure to submit an answer, or delay in doing so, shall not prevent the constitution of the arbitral tribunal or the continuation of the proceedings.

5-4: The Executive Committee may grant the Respondent an extension of the time limit for its answer of up to fifteen (15) days, upon a reasoned request.

Article (6): Counterclaims and Set-Off

6-1: The Respondent is entitled to submit counterclaims or a plea of set-off relating to the contract or the arbitration agreement that is the subject of the dispute.

6-2: Counterclaims must arise out of the same contract or contractual relationship from which the original dispute arose.

6-3: A counterclaim shall be submitted in the answer to the request for arbitration, or as soon as possible thereafter, and shall include a description of the claim, its value and its legal basis.

6-4: The arbitral tribunal has jurisdiction to hear and determine counterclaims, whether in its final award or by a separate partial award.

Article (7): Interim and Conservatory Measures

7-1: Any party may, prior to the constitution of the arbitral tribunal or at any time during the proceedings, apply to the competent national court for interim or conservatory measures, and doing so shall not be deemed a waiver of the right to arbitrate.

7-2: Once constituted, the arbitral tribunal has the power to order such interim and conservatory measures as are necessary to protect the rights of the parties, unless the applicable law prohibits it from doing so. Such measures include:

1. Preserving evidence and documents at risk of loss.
2. Preserving assets in dispute or connected with the dispute.
3. Halting or preventing any act likely to cause irreparable harm.
4. Providing adequate financial security in anticipation of the eventual award.

7-3: The party applying for an interim measure bears full responsibility for any losses suffered by the other party as a result of the application of that measure, if the arbitral tribunal subsequently decides that it was unwarranted.



Chapter III — Constitution of the Arbitral Tribunal

Article (8): Number of Arbitrators

8-1: The arbitral tribunal shall consist of a sole arbitrator or of three arbitrators, as agreed by the parties.

8-2: Where the parties do not agree on the number of arbitrators, the Executive Committee shall determine the number, having regard to:

- The value of the dispute: where the value of the dispute exceeds one million US dollars, or its equivalent, a three-member tribunal is recommended.
- The degree of complexity of the dispute: technically complex disputes generally require a three-member tribunal.
- The parties' expressed positions and preferences.

8-3: In all cases, the parties may agree on a sole arbitrator irrespective of the value of the dispute.

Article (9): Qualifications of Arbitrators and Selection Criteria

9-1: Every arbitrator must satisfy the following criteria:

- Complete independence and impartiality towards all parties and the subject matter of the dispute.
- Competence and experience in engineering, law, or both, as the nature of the dispute requires.
- Sufficient availability to undertake the arbitration and render the award within the specified time.
- Command of the language in which the arbitral proceedings are conducted.
- Full legal capacity.

9-2: It is preferable that the chair of the arbitral tribunal hold a specialised engineering or legal qualification and have not less than fifteen (15) years of experience in construction contracts or engineering arbitration.

9-3: An arbitrator is not required to be of any particular nationality, unless the parties agree otherwise; the Authority shall endeavour to appoint a chair of neutral nationality.

Article (10): Appointment of Arbitrators

10-1: The appointment of arbitrators proceeds as follows:

- Sole arbitrator: the parties shall agree on the arbitrator's name within fifteen (15) days of the Respondent's receipt of the request for arbitration. Failing agreement, the Executive Committee shall make the appointment within fifteen (15) days.
- Three-member tribunal: each party shall appoint its arbitrator in the request for arbitration and the answer thereto, respectively. The two party-appointed arbitrators shall then agree on the chair within fifteen (15) days of the completion of their own appointment. Failing agreement, the Executive Committee shall appoint the chair.

10-2: Where there are multiple claimants or respondents, each group shall appoint its arbitrator by agreement among its members. Where such agreement cannot be reached, the Executive Committee shall appoint the arbitrators for all parties.



10-3: The Authority shall not accept the nomination of any arbitrator unless the person nominated has consented in writing, declared acceptance of the mandate, and confirmed their independence and impartiality.

Article (11): Duty of Disclosure

11-1: Any person nominated or appointed as an arbitrator shall immediately disclose in writing to the parties and to the Executive Committee any circumstances likely to give rise to justifiable doubts as to their independence or impartiality, including:

1. Any professional, business or personal relationship with any of the parties, their counsel, advisers or experts.
2. Any direct or indirect financial interest in the subject matter of the dispute.
3. Any previously and publicly expressed opinion on a legal or technical question similar to the subject matter of the dispute.
4. Any prior or current arbitration involving any of the parties or their counsel.

11-2: The duty of disclosure continues throughout the proceedings: an arbitrator must immediately disclose any new circumstance arising subsequently.

11-3: Disclosure does not necessarily imply disqualification. The parties shall be informed of what has been disclosed and shall be given ten (10) days to comment on and object to the appointment before it is confirmed or rejected.

Article (12): Challenge and Removal of an Arbitrator

12-1: Any party may request the challenge of an arbitrator where circumstances exist giving rise to justifiable doubts as to that arbitrator's independence or impartiality.

12-2: A challenge shall be submitted in writing to the Executive Committee, stating the grounds, within fifteen (15) days of the party becoming aware of the arbitrator's appointment or of the circumstances giving rise to the doubt, whichever is later.

12-3: The Executive Committee shall consider the challenge after reviewing the comments of the challenged arbitrator and the other members of the tribunal, and shall issue its decision within fifteen (15) days. The Committee's decision in this respect is final.

12-4: The submission of a challenge shall not suspend the proceedings, unless the Executive Committee decides otherwise.

12-5: The Executive Committee may, of its own motion, remove any arbitrator where it appears that the arbitrator has failed to fulfil, or is unable to fulfil, their duties.

Article (13): Replacement of an Arbitrator

13-1: An arbitrator shall be replaced in the following cases: death, a challenge being upheld, resignation, incapacity to perform the mandate, or a decision of the Executive Committee to remove the arbitrator.

13-2: A replacement arbitrator shall be appointed following the same procedures used for the original appointment.

13-3: After the appointment of the replacement arbitrator, the arbitral tribunal shall decide the extent to which any prior proceedings need to be repeated, having regard to the circumstances of the case and the fairness of the proceedings.



Chapter IV — Jurisdiction of the Arbitral Tribunal

Article (14): Competence-Competence

14-1: The arbitral tribunal has jurisdiction to rule on its own jurisdiction, including any plea concerning the existence, validity or scope of the arbitration agreement.

14-2: An arbitration clause contained in a contract shall be treated as an agreement independent of that contract, and the invalidity of the original contract, or an allegation of its invalidity, shall not entail the invalidity of the arbitration clause (principle of separability).

14-3: A plea that the arbitral tribunal lacks jurisdiction shall be raised at the latest in the statement of defence or the answer to the request for arbitration, and the right to raise it shall lapse thereafter. In exceptional cases the matter may be referred to the Executive Committee for determination.

14-4: The arbitral tribunal shall determine a plea of lack of jurisdiction either by a separate award or defer its determination until after it has decided the merits, as it considers appropriate having regard to the circumstances of the case.

Chapter V — Conduct of the Arbitral Proceedings

Article (15): First Procedural Order and Case Management Conference

15-1: Once the arbitral tribunal has been fully constituted and the arbitrators have accepted their mandate, an initial case management conference (whether in person or remotely) shall be held within thirty (30) days of the completion of the tribunal's constitution.

15-2: Following the case management conference, the arbitral tribunal shall issue Procedural Order No. 1, containing:

1. The complete timetable for the proceedings, from the exchange of submissions through to the hearings.
2. The rules governing the exchange of written submissions and the applicable page limits.
3. The procedures for the production and disclosure of evidence and documents.
4. The procedures for the appointment of experts and the submission of their reports.
5. The seat, language, and applicable law of the arbitration.
6. Any other procedural matters it considers appropriate.

15-3: Procedural Order No. 1 shall be sent to the parties as soon as it is issued and shall be binding on them.

Article (16): Terms of Reference

16-1: The arbitral tribunal shall prepare the Terms of Reference within thirty (30) days of accepting its mandate, in consultation with the parties.

16-2: The Terms of Reference shall, at a minimum, include:

1. The identity of the parties and their legal representatives.
2. A brief summary of each party's claims and relief sought.
3. A list of the substantive issues to be determined.



4. The powers of the arbitral tribunal, including the power to decide counterclaims.
5. The applicable substantive law, the language, and the seat of the arbitration.
6. The provisional procedural timetable.

16-3: The Terms of Reference shall be signed by each member of the arbitral tribunal and by the parties or their representatives. Should a party refuse to sign, the arbitral tribunal shall refer the matter to the Executive Committee for determination.

Article (17): Exchange of Written Submissions

17-1: The exchange of submissions proceeds in the following order:

1. Claimant's Statement of Claim: setting out the facts, evidence, legal arguments and specific relief sought.
2. Respondent's Statement of Defence: responding to the claims and setting out the defences and any counterclaims.
3. Claimant's Reply: responding to the Respondent's defences and counterclaims.
4. Respondent's Rejoinder: closing the Respondent's case.

17-2: The arbitral tribunal shall, in its procedural order, set the deadlines for filing each submission and the maximum number of pages permitted.

17-3: Each submission shall be accompanied by the documents relied upon, marked with sequential reference numbers (C-1, C-2, ... for the Claimant; R-1, R-2, ... for the Respondent).

17-4: All submissions directed to the arbitral tribunal shall simultaneously be notified to the other party.

17-5: No further submissions may be filed except with the express leave of the arbitral tribunal.

Article (18): Disclosure of Documents and Production of Evidence

18-1: Each party shall submit a list of the documents on which it relies, appended to its opening submission.

18-2: Any party may request disclosure of documents in the possession of the other party by means of a "Redfern Schedule" (document production request schedule), setting out:

1. A description of the document requested and its content.
2. The substantive grounds for the request and its relevance to the dispute.
3. The other party's position on the request (grant / refuse, with reasons).

18-3: The arbitral tribunal shall determine disputed disclosure requests by procedural order.

18-4: Failure to produce a document requested by order of the tribunal shall entitle the tribunal to draw adverse inferences from that failure.

18-5: The arbitral tribunal shall, where necessary, refer to the IBA Rules on the Taking of Evidence in International Commercial Arbitration.

Article (19): Experts

19-1: Expert evidence is divided into two categories:



- Party-appointed experts: appointed separately by each party, whose fees that party bears and whose reports it submits with its own submissions.
- Tribunal-appointed expert: the arbitral tribunal may, of its own motion or upon the parties' request, appoint an independent, neutral expert.

19-2: Each party-appointed expert must disclose, at the start of their report, their qualifications, experience, independence and impartiality.

19-3: The arbitral tribunal may direct that the parties' experts be examined together in a single session ("hot-tubbing") to discuss the points on which they differ.

19-4: A tribunal-appointed expert may access all relevant documents, and the parties shall be notified of the expert's report sufficiently in advance of the hearing.

Article (20): Hearings

20-1: The arbitral tribunal shall hold hearings to hear witnesses and experts and oral submissions, unless the parties agree to rely solely on written submissions.

20-2: The arbitral tribunal shall notify the parties of the dates and venue of hearings at least fifteen (15) days in advance.

20-3: Hearings shall be held at the headquarters of the General Secretariat of the Federation of Arab Engineers in Cairo, or at any other location decided by the arbitral tribunal after consulting the parties, or remotely by means of communication technology where appropriate.

20-4: A hearing shall commence with each party's opening statement, followed by the testimony of witnesses and experts (with the right of cross-examination), then questions from the arbitral tribunal, and shall conclude with closing statements.

20-5: The arbitral tribunal may put questions to the parties, witnesses and experts at any time during the hearing.

20-6: Hearings shall be conducted with complete equality between the parties as to the allocation of time and opportunities.

Article (21): Language, Notification and Correspondence

21-1: Arbitral proceedings shall be conducted in the language agreed by the parties. Failing agreement, the arbitral tribunal shall determine the language, having regard to the language of the contract and the nationalities of the parties.

21-2: The original language of the Rules is Arabic. Arbitration may be conducted in both Arabic and English together, or in any other language, if the parties or the arbitral tribunal so decide.

21-3: Documents shall be submitted in the agreed language of the arbitration; any document submitted in another language shall be accompanied by a certified translation.

21-4: Notification shall be deemed valid if the document is delivered personally, by registered mail, or by email with confirmation of receipt, to the address specified in the request for arbitration or the answer thereto, or to any subsequently notified address.



21-5: In computing any time period, the day on which the notice is deemed received shall not be counted. Periods computed in days mean full calendar days.

Chapter VI — The Arbitral Award

Article (22): Issuance of the Award and Deliberations

22-1: The arbitral tribunal shall conduct its deliberations in private, without the presence of the parties or their representatives.

22-2: In the case of a three-member tribunal, the award shall be rendered unanimously or by a majority of the arbitrators. Where no majority can be reached, the chair shall render the award alone.

22-3: A dissenting arbitrator may record a reasoned dissenting opinion, to be appended to the award.

22-4: The arbitral tribunal shall render its award within a period not exceeding one hundred and eighty (180) days from the date the proceedings are declared closed. This period may be extended by a reasoned decision of the arbitral tribunal or by agreement of the parties.

Article (23): Form and Content of the Award

23-1: The award shall be rendered in writing and shall state adequate reasons setting out the facts found and the legal basis for each decision.

23-2: The award shall necessarily contain:

1. The names and capacities of the members of the arbitral tribunal.
2. The names of the parties and their legal representatives.
3. A statement of the arbitration agreement and the applicable law.
4. The seat of the arbitration and the date the award is rendered.
5. A summary of the arbitral proceedings from commencement to closure.
6. A brief statement of each party's claims and defences.
7. The facts found by the arbitral tribunal and the grounds therefor.
8. The legal analysis and determination of each issue in the case.
9. The dispositif: the tribunal's final decisions on the relief sought and on costs.
10. The costs of the arbitration and how they are apportioned between the parties.
11. The signatures of the arbitrators and the place and date of issuance.

Article (24): Types of Awards

24-1: The arbitral tribunal may render the following types of awards:

1. Partial Award: determines some, but not all, of the issues in dispute.
2. Interim Award: rendered on urgent matters during the course of the proceedings.
3. Preliminary Award: determines questions of jurisdiction or law.
4. Final Award: brings the dispute to a complete end and determines all issues raised.



5. Consent Award: records a settlement agreement reached by the parties.

24-2: A partial award has the force of a final award as to the matters it determines, and those matters may not be reopened.

Article (25): Correction, Interpretation and Additional Award

25-1: Within thirty (30) days of receiving the award, any party may request the arbitral tribunal to:

1. Correct any computational, clerical or typographical error in the award.
2. Interpret a specific point or paragraph of the award.
3. Render an additional award on claims that were presented during the proceedings but omitted from the award.

25-2: The arbitral tribunal shall determine such requests within forty-five (45) days of receiving them, after considering the comments of the other party.

Article (26): Binding Effect and Enforceability of the Award

26-1: The arbitral award shall be final and binding on the parties, and enforceable immediately upon its issuance.

26-2: By signing the arbitration agreement, the parties undertake to comply with the award without delay.

26-3: The arbitral award shall not be subject to challenge before the arbitral tribunal by ordinary means of recourse, such as appeal.

26-4: The arbitral award shall be enforced in accordance with the national laws of the State of enforcement, and internationally in accordance with the 1958 New York Convention on the Recognition and Enforcement of Foreign Arbitral Awards, in States party to it.

Chapter VII — Costs of Arbitration

Article (27): Components of the Costs of Arbitration

27-1: The costs of arbitration referred to in these Rules include:

1. The administration and registration fees payable to the Authority under its applicable schedule of fees.
2. The fees and expenses of the members of the arbitral tribunal (travel, accommodation, communications).
3. The fees of any experts appointed by the arbitral tribunal, if any.
4. The legal fees of counsel and representatives of each party (to be assessed by the tribunal if requested).
5. Other administrative expenses connected with the proceedings (translation, registration, copying, etc.).

27-2: Arbitrators' fees shall be determined in accordance with the Authority's schedule of fees, or as agreed between the parties and the arbitrators, and shall be deposited in advance with the Authority before the proceedings commence.

Article (28): Allocation of the Costs of Arbitration

28-1: The award shall determine liability for the costs of arbitration in accordance with the following principles:

1. General principle: the losing party bears all or most of the costs of arbitration.



2. Proportional apportionment: where some claims succeed and others fail, the burden shall be apportioned accordingly.
3. Other considerations: the tribunal may take into account the parties' conduct, good faith and cooperation.

28-2: The arbitral tribunal has full discretion to determine who bears the fees and costs, and in what proportion.

Chapter VIII — Provisions Specific to Engineering Arbitration

Article (29): Delay Analysis and Programme

29-1: In disputes concerning delays to construction projects, the party claiming an extension of time must demonstrate the delay's impact on the project's critical path using one of the recognised international methods:

1. Impacted As-Planned method.
2. Time Impact Analysis (TIA).
3. Fragnet approach.
4. Collapsed As-Built method.

29-2: The arbitral tribunal shall prefer evidence based on contemporaneous project records over evidence prepared retrospectively.

Article (30): Contemporaneous Records as Evidence

30-1: The arbitral tribunal shall accord greater evidentiary weight to records prepared at, or close to, the time the events occurred, including: site diaries, meeting minutes, contemporaneous correspondence, monthly reports, and dated photographs.

30-2: Where a party fails to maintain adequate contemporaneous records after becoming aware of the event giving rise to the dispute, the arbitral tribunal may draw an adverse inference from that failure when assessing the claims.

Article (31): Variation Orders

31-1: In disputes concerning variation orders, the arbitral tribunal shall verify:

1. The authority of the person issuing the variation order under the terms of the contract.
2. Compliance with any contractually required written form, or proof of written confirmation of oral instructions.
3. The basis of valuation in accordance with the order of priority set out in the FIDIC contract (Sub-Clause 12.3 or its equivalent).

31-2: Constructive changes are subject to the same standard of proof, together with the requirement to establish a causal link between the other party's conduct and the actual change in the scope of work.

Article (32): Force Majeure and Exceptional Events

32-1: To establish a claim of force majeure or an exceptional event, the following conditions must be proven cumulatively:

1. The event was beyond the control of the party invoking it.
2. The event could not reasonably have been foreseen at the time the contract was concluded.



3. It was impossible reasonably to avoid the event or overcome its effects.
4. There is a direct causal link between the event and the non-performance or delay.
5. The notice required under the contract was given within the specified time.

Article (33): Dispute Avoidance/Adjudication Board (DAAB)

33-1: In contracts that provide for a Dispute Avoidance/Adjudication Board (DAAB) under the FIDIC 2017 contracts or their equivalent, the Authority requires, before accepting a request for arbitration:

1. Proof that the dispute was referred to the DAAB and that it rendered its decision.
2. Or proof that a notice of dissatisfaction with the Board's decision was given and that the amicable settlement period has expired.
3. Or proof that the Board refused to accept the referral, or failed to render its decision within the period specified.

33-2: Notwithstanding the foregoing paragraph, the Authority shall accept a request for arbitration directly in the event of a failure to comply with a final and binding DAAB decision.

Chapter IX — Confidentiality and Professional Ethics

Article (34): Confidentiality

34-1: All arbitral proceedings are confidential. No party, arbitrator, or employee of the Executive Committee may disclose to any third party any information relating to the arbitration, including: the existence of the arbitration, the content of submissions, documents exchanged, or awards rendered.

34-2: Exceptions to the duty of confidentiality:

1. The express consent of the parties to disclosure.
2. Disclosure required by law or by court order.
3. Disclosure necessary for proceedings to enforce the award before national courts.
4. Disclosure necessary to protect a substantial legal right in judicial proceedings.

34-3: The duty of confidentiality continues indefinitely after the conclusion of the arbitral proceedings.

Article (35): Professional Ethics of Arbitrators

35-1: Every arbitrator shall comply with the following ethical standards throughout the proceedings and thereafter:

- Complete impartiality, and no unilateral communication with any party on any matter relating to the subject matter of the dispute.
- Independence, and not accepting any instructions or direction from the party that appointed the arbitrator.
- Maintaining, in all circumstances, the confidentiality of the tribunal's internal deliberations.
- Refusing any gifts or benefits from any party.
- Immediately disclosing any development that may affect the arbitrator's independence or impartiality.
- Continuing in the mandate until its conclusion, and not withdrawing except for compelling reasons.



Chapter X — Final Provisions

Article (36): UNCITRAL Model Law and Supplementary Rules

36-1: Procedural matters not governed by these Rules shall be completed by agreement of the parties; failing that, by the UNCITRAL Arbitration Rules as revised in 2013; and failing that, as determined by the arbitral tribunal in furtherance of the principles of justice and efficiency.

36-2: The arbitral tribunal shall, in all its decisions, have regard to the principles of international commercial arbitration law and the UNIDROIT Principles of International Commercial Contracts.

Article (37): Code of Conduct for Arbitrators

The Authority shall issue a Code of Professional Conduct for arbitrators containing detailed rules on ethics, disclosure and conflicts of interest, and this Code shall form an integral part of these Rules.

Article (38): Amendment of the Rules

The Arab Authority for Engineering Arbitration may amend these Rules by decision of its Executive Committee. Amendments shall apply to arbitrations commenced after the amendment takes effect, unless the parties agree to apply a prior version.

Article (39): Limitation of Liability

Neither the Authority nor the members of the arbitral tribunal shall bear any liability for any act, decision or omission connected with the arbitral proceedings, unless deliberate serious misconduct is established.

Article (40): Entry into Force

These Rules shall take effect from the date of their approval by the General Assembly of the Arab Authority for Engineering Arbitration.

These Rules supersede all prior editions of the arbitration rules issued by the Authority.

Issued by the Arab Authority for Engineering Arbitration.

Federation of Arab Engineers — Cairo, Arab Republic of Egypt.



PART TWO — OFFICIAL FORMS

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Form (1) — Request for Arbitration / طلب التحكيم

Date Received	
Case Number	

To: The Executive Committee of the Arab Authority for Engineering Arbitration — Federation of Arab Engineers —
Cairo

I. Claimant's Particulars

Claimant's Full Legal Name	
Legal Capacity (company / institution / government entity...)	
Commercial Registration / Incorporation No.	
Principal Place of Business / Detailed Address	
Country	
Telephone	
Fax	
Email	

II. Claimant's Legal Representative (Counsel / Agent)

Full Legal Name	
Detailed Address	
Country	
Telephone	
Email	

III. Respondent's Particulars (First Respondent)

Full Legal Name	
Detailed Address	
Country	
Telephone	
Email	

IV. Respondent's Particulars (Second Respondent, if any)

Full Legal Name	
-----------------	--



Detailed Address	
Country	
Telephone	
Email	

V. Subject Matter of the Dispute and the Contract

Contract Name and Subject Matter	
Contract Number and Date	
Total Contract Value	

Brief summary of the dispute, its facts and its causes:

VI. Specific Relief Sought and Value of the Dispute

No.	Claim	Value (USD / other currency)
1		
2		
3		
Total		

VII. Arbitration Agreement and Arbitrator

☐ Separate submission agreement dated: _____		☐ Arbitration clause in the contract (Article No.: ____)
Proposed Number of Arbitrators		
Name of Arbitrator Nominated by the Claimant (three-member tribunal)		
Proposed Language of Arbitration		
Proposed Seat of Arbitration		
Proposed Applicable Law		

VIII. Documents Attached

☐ Copy of the contract and its annexes	☐ Copy of the arbitration agreement
☐ Power of attorney / authorisation	☐ Proof of payment of registration fee



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☐ Supporting documents for the claims

☐ Other: _____

I hereby declare, by submitting this request, my capacity to submit it and the accuracy of all information contained herein, and that the attached documents conform to the originals.

Name and Title of Applicant	Date	Signature
Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____

For official use by the Executive Committee: Case No. ____ / Fees paid: ☐ Yes ☐ Pending | Formal requirements complete: ☐ Yes ☐ Requires completion | Received by (name): _____ / Date of receipt: _____



Form (2) — Answer to Request for Arbitration / الرد على طلب التحكيم

Date Request for Arbitration Received	
Deadline for Answer	
Case Number	

Respondent: _____ | Case No.: _____ | v. Claimant: _____

I. Respondent's Particulars

Respondent's Full Legal Name	
Legal Capacity	
Detailed Address and Country	
Telephone / Fax / Email	
Name of Legal Representative / Counsel	
Address and Contact Particulars	
Power of Attorney / Authorisation No.	

II. Respondent's Position on the Arbitral Tribunal's Jurisdiction

☐ Respondent accepts the tribunal's jurisdiction	☐ Respondent objects to jurisdiction — grounds below
---	---

Grounds for the jurisdictional objection (if any):

III. Respondent's Position on the Facts of the Dispute and the Claimant's Claims

Summary of the Respondent's position on the facts of the dispute and its response to the Claimant's claims:

IV. Substantive Defences

☐ Procedural defence: limitation / time-bar	☐ Substantive defence: response on the merits of the claims
☐ Defence of lack of capacity / standing	☐ Other defences (set out below)

Details of the defences:

V. Counterclaims (if any)

No.	Counterclaim	Value
1		



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No.	Counterclaim	Value
2		
3		
Total		

VI. Comments on the Constitution of the Arbitral Tribunal

Position on the Number of Arbitrators Proposed by the Claimant	
Name of Arbitrator Nominated by the Respondent (three-member tribunal)	

VII. Comments on the Proceedings

Position on the Proposed Language of Arbitration	
Position on the Seat of Arbitration	
Position on the Applicable Law	

VIII. Relief Requested

The Respondent respectfully requests the arbitral tribunal to:

Name and Title of Signatory	Date	Seal and Signature
Signature: _____ Date: ____/____/____	Signature: _____ Date: ____/____/____	Signature: _____ Date: ____/____/____



Form (3) — Arbitration Agreement / Submission Agreement / مشاركة التحكيم

On this ____ day, corresponding to ____ / ____ / _____, agreement was reached and entered into between:

First Party (Claimant)

Full Legal Name	
Commercial Registration No.	
Address	
Name of Legal Agent	
Power of Attorney No., Date and Source	

Second Party (Respondent)

Full Legal Name	
Commercial Registration No.	
Address	
Name of Legal Agent	
Power of Attorney No., Date and Source	

Recitals

Whereas the parties entered into a contract [description of the contract] _____ dated ____ / ____ / _____ with a total value of _____, and whereas a dispute has arisen between the parties out of the performance of that contract which could not be resolved amicably, and consisting of the First Party's claim to be entitled to:

And in order to put an end to the disagreement and to preserve their relationship and mutual interests, the parties wish to resolve this dispute by arbitration, and have accordingly agreed as follows:

Essential Terms of the Submission Agreement

Article 1 — Referral of the Dispute to Arbitration: The parties agree to refer the dispute described above to arbitration before the Arab Authority for Engineering Arbitration, affiliated with the Federation of Arab Engineers, in accordance with the Authority's Engineering Arbitration Rules.

Article 2 — Constitution of the Arbitral Tribunal: The arbitral tribunal shall consist of: ☐ a sole arbitrator ☐ three arbitrators.

Arbitrator Appointed by the First Party	
Arbitrator Appointed by the Second Party	



The third arbitrator (chair) shall be appointed by agreement of the two arbitrators, or by the Authority's Executive Committee should they fail to agree.

Article 3 — Scope of the Tribunal's Jurisdiction: The arbitral tribunal shall determine all claims brought by the First Party against the Second Party, and any counterclaims brought by the Second Party against the First Party, relating to the dispute described above.

Article 4 — Seat of Arbitration: Hearings shall be held at the headquarters of the Arab Authority for Engineering Arbitration in Cairo, or at any other location decided by the arbitral tribunal after notifying the parties.

Article 5 — Language of Arbitration: The language of the arbitration shall be: ☐ Arabic ☐ English ☐ Arabic and English together ☐ Other language. Documents may be submitted in their original language, accompanied by a certified translation.

Article 6 — Duration of the Arbitration: The arbitral tribunal shall render its award within one hundred and eighty (180) days of the date the file is referred to it, subject to possible extension.

Article 7 — Applicable Law: Substantive law: the laws of _____. Procedural law: the Rules of the Arab Authority for Engineering Arbitration, supplemented by the UNCITRAL Rules 2013.

Article 8 — The Arbitral Award: The award shall be rendered in writing, with reasons, and shall be final and binding on both parties and not subject to challenge by ordinary means of recourse.

Article 9 — Costs: The parties shall initially bear the Authority's fees and the arbitrators' fees in equal shares, with the arbitral tribunal retaining the right to make a final allocation in its award.

Article 10 — Confidentiality: All arbitral proceedings, documents and the award are confidential and may not be disclosed to third parties.

This Submission Agreement has been executed in ____ identical original counterparts, one held by each party, and a further counterpart deposited with the Authority.

First Party	Second Party	Witness (if any)
Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____



Form (4) — Arbitrator Acceptance & Declaration of Independence / قبول تعيين المحكم وإقصاص الاستقلالية

Case Number	
Capacity of Arbitrator	☐ Sole ☐ Chair ☐ Co-Arbitrator

Arbitrator's Particulars

Full Name of Arbitrator	
Nationality	
Principal Academic Qualification and Specialisation	
Practical Experience (field and years)	
Full Address and Country	
Telephone / Email	

I. Acceptance of Appointment

I, the undersigned, hereby declare my acceptance of my appointment as arbitrator in the case referenced above, and I confirm the following:

- I have reviewed the summary of the dispute and confirm that I have sufficient availability to undertake this mandate in a timely manner.
- I am proficient in the language used in the arbitral proceedings and familiar with the applicable law.
- I acknowledge that I am bound by the arbitration rules issued by the Arab Authority for Engineering Arbitration and by its confidentiality policy and code of professional ethics.

II. Disclosure of Conflicts of Interest

Having made careful enquiry, I state as follows:

☐ There are no matters requiring disclosure — I am wholly independent and impartial	☐ The following matters require disclosure
--	---

If disclosure is made, please describe the matter disclosed and state your opinion of its effect on independence:

☐ The arbitrator considers this does not affect independence or impartiality and maintains the nomination	☐ Reservation entered
--	--

III. Undertaking and Final Declaration

I undertake, in good faith, as follows:

- I shall treat the parties with complete equality and shall give each a full opportunity to present its case.
- I shall not communicate unilaterally with any party on any matter relating to the subject matter of the dispute.



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- I shall immediately disclose any new circumstance arising subsequently that may affect my independence or impartiality.
- I shall maintain the confidentiality of all deliberations, documents and information relating to the arbitration.
- I shall conclude my involvement and duties in any other arbitrations that conflict with this case, or otherwise notify the Executive Committee.

Full Name of Arbitrator	Date	Signature
Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____



Form (5) — Procedural Order No. 1 / الأمر الإجرائي رقم 1

Order Number	(1)
Date of Issuance	
Case Number	

In the arbitration: [Claimant's name] _____ (“Claimant”) v. [Respondent's name] _____ (“Respondent”)

The arbitral tribunal, composed of: Chair: _____, Member: _____, Member: _____, hereby issues the following Procedural Order:

Article 1: Legal Framework

Applicable Arbitration Rules	
Applicable Substantive Law	
Procedural Law	
Seat of Arbitration	
Language of the Proceedings	

Article 2: Procedural Timetable

Stage	Deadline	Notes
Statement of Claim (Claimant)	__ / __ / __	
Statement of Defence (Respondent)	__ / __ / __	
Reply (Claimant)	__ / __ / __	
Rejoinder (Respondent)	__ / __ / __	
Experts' Initial Reports	__ / __ / __	
Experts' Reply Reports	__ / __ / __	
Document Production Requests	__ / __ / __	
Responses to Document Production Requests	__ / __ / __	
Hearings (from ... to ...)	__ / __ / __	
Post-Hearing Submissions	__ / __ / __	
Closure of Proceedings	__ / __ / __	

Article 3: Page Limits for Submissions



Maximum Pages — Statement of Claim	
Maximum Pages — Statement of Defence	
Maximum Pages — Reply	
Maximum Pages — Rejoinder	
Minimum Font Size	
Document Format	

Article 4: Rules of Communication with the Arbitral Tribunal

4-1: All correspondence with the arbitral tribunal shall be directed to the following email address:

4-2: Every communication sent to the arbitral tribunal shall simultaneously be sent to the other party, with a copy to the General Secretariat.

4-3: No unilateral communication with any member of the arbitral tribunal is permitted.

Member	Member	Chair of the Tribunal
Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____



Form (6) — Terms of Reference / وثيقة الاختصاص

In the arbitration: [Claimant's name] _____ ("Claimant") v. [Respondent's name] _____ ("Respondent")

Case No.: _____ before the Arab Authority for Engineering Arbitration

Section I: Identity of the Parties and Their Representatives

Claimant and Representatives	Respondent and Representatives
Name: _____ Address: _____ Counsel: _____	Name: _____ Address: _____ Counsel: _____

Section II: The Arbitral Tribunal

Chair of the Tribunal	
First Member (Appointed by the Claimant)	
Second Member (Appointed by the Respondent)	
Date the Tribunal's Constitution Was Completed	

Section III: Background to the Dispute and the Contract

3-1: The contract in dispute: _____

3-2: Summary of the Claimant's claims:

3-3: Summary of the Respondent's defences:

Section IV: List of Substantive Issues

The arbitral tribunal undertakes to determine the following issues:

No.	Issue
1	Jurisdictional issues: does the tribunal have jurisdiction to determine this dispute?
2	The law applicable to the merits of the dispute and to the proceedings
3	[The substantive issues of the case to be inserted following consultation with the parties]
4	
5	
...	
n	Allocation of the costs of arbitration



Section V: Procedural Framework

Substantive Law	
Procedural Law	
Seat of Arbitration	
Language of Arbitration	
Applicable Arbitration Rules	

This document is signed by the parties and the arbitral tribunal in acknowledgment of their agreement to its contents.

Claimant / Representative	Respondent / Representative	Chair of the Tribunal
Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____



Form (7) — Application for Interim / Conservatory Measures / طلب التدبير الوقفي الاحترازي

Application Particulars

Case Number / Names of Parties	
Name and Capacity of Applicant in the Arbitration	
Date of Application	

I. The Measure Requested

☐ Freezing of specified assets	☐ Preservation of evidence
☐ Prohibition of dealing with the subject matter of the dispute	☐ Order for immediate interim performance
☐ Provision of financial security	☐ Other: set out below

Precise description of the measure requested:

II. Legal and Factual Basis for the Application

This measure is requested pursuant to Article (7) of the Authority's Engineering Arbitration Rules, on the ground that:

1. Anticipated harm: _____
2. Causal link: _____
3. Urgency: _____
4. Futility of awaiting the final award: _____

III. Undertaking to Bear Consequences

The applicant undertakes to bear full liability for compensation should the arbitral tribunal subsequently determine that this measure was unwarranted or unnecessary.

Applicant / Representative	Date	Signature
Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____



Form (8) — Expert Declaration of Independence & Objectivity / إقرار الخبير بالاستقلالية والتزام الموضوعية

Expert's Particulars

Full Name of Expert	
Nationality	
Academic and Professional Qualifications	
Practical Experience in the Field (specialisation and years)	
Appointing Party	
Subject Matter of Expertise in this Case	

I, the undersigned, hereby declare as follows:

1. My primary duty as an expert is to provide my independent opinion to assist in the achievement of justice, and not to advocate for the interests of the party that appointed me.
2. I present this report with objectivity and scientific rigour, relying solely on the information and methodology I consider correct.
3. I have reviewed the following documents and have based my opinion upon them:

4. I am not aware of any conflict of interest that could affect my objectivity, save as disclosed below:

5. My report is complete and accurate to the best of my current knowledge, and I am prepared to give evidence at the hearing and to be cross-examined.
6. I acknowledge that I am bound by international rules of expert conduct, and in particular the IBA Guidelines for Party-Appointed Experts in International Arbitration.

Name of Expert	Date	Signature
Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____



Form (9) — Award Template — Structural Reference / هيكل الحكم التحكيمي - نموذج مرجعي

Note: this template is an illustrative structural guide. The arbitral tribunal shall draft its award based on the facts, evidence and arguments of each individual case.

ARBITRAL AWARD [FINAL / PARTIAL]

Case No.: _____

[Claimant's Name] _____, (Claimant)

v.

[Respondent's Name] _____, (Respondent)

Section I: Introduction and Background to the Case

1-1: The Parties:

Claimant	
Respondent	

1-2: The Arbitral Tribunal:

Chair	
Member	
Member	

1-3: The Arbitration Agreement: this arbitration is based on [an arbitration clause in Article ____ of the contract _____ / a submission agreement dated _____].

1-4: Applicable Arbitration Rules: the Engineering Arbitration Rules of the Arab Authority for Engineering Arbitration.

Substantive Law	
Seat of Arbitration	
Language	

Section II: Summary of the Arbitral Proceedings

[The principal stages of the proceedings, from the request for arbitration through to the closure of the file, shall be listed here together with their dates.]

Section III: Facts Established

Having reviewed all the submissions, documents and testimony presented, the arbitral tribunal has determined the following facts to be established:

Section IV: The Parties' Claims

4-1: Claimant's claims: [summary of the claims and their value]

4-2: Respondent's defences and counterclaims: [summary]

Section V: Legal Analysis and Determination of the Substantive Issues

5-1: The Question of Jurisdiction:



5-2: First Issue [title]:

Claimant's position: _____

Respondent's position: _____

Tribunal's assessment and conclusion:

[Repeated for each substantive issue.]

Section VI: Quantum

No.	Item	Awarded	Claimed
1			
2			
3			
Interest	at a rate of ____% from ____		
Total			

Section VII: Costs of Arbitration

Item	Borne By	Total
Authority's administration fee		
Fees and expenses of the arbitral tribunal		
Claimant's legal fees		
Respondent's legal fees		
Total		

Section VIII: The Dispositif

For these reasons, the arbitral tribunal decides as follows:

First: [The Respondent] shall pay to the Claimant the sum of _____
(_____).

Second: the tribunal decides [to grant / to refuse] the request for an extension of time _____.

Third: the tribunal awards interest at the rate of ____% per annum from _____ until full payment.

Fourth: the Claimant's claims relating to _____ are dismissed for failure to establish liability / quantum.

Fifth: all of the Respondent's counterclaims are dismissed [or: the following are granted: _____].



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Sixth: the costs of arbitration, amounting to _____, shall be borne by [the Respondent / the Claimant / both equally].

Seventh: all other claims are dismissed.

Rendered in the city of _____ on ____ / ____ / ____.

Member	Member	Chair of the Tribunal
Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____	Signature: _____ Date: ____ / ____ / ____

End of Part Two: Official Forms
Arab Authority for Engineering Arbitration – Federation of Arab Engineers